

IN THE SENATE

SENATE BILL NO. 1342

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO EGGS; AMENDING TITLE 25, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 41, TITLE 25, IDAHO CODE, TO PROVIDE FOR THE HOUSEHOLD EGG PRODUCTION AND FOOD SECURITY ACT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 25, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 41, Title 25, Idaho Code, and to read as follows:

CHAPTER 41

HOUSEHOLD EGG PRODUCTION AND FOOD SECURITY ACT

25-4101. SHORT TITLE. This chapter may be known and shall be cited as "The Household Egg Production and Food Security Act."

25-4102. LEGISLATIVE FINDINGS. The legislature finds that:

(1) Many Idaho residents who live in single-family residences are currently prohibited from producing eggs for household consumption due to local ordinances or restrictions;

(2) Eggs are a basic food staple, and household egg production supports food security, self-reliance, and family resilience;

(3) Agriculture is foundational to Idaho's economy and future. Modern nutrition guidance increasingly emphasizes whole, nutrient-dense foods and balanced diets that support metabolic health;

(4) Eggs are a foundational nutrient-dense food that aligns with such dietary principles and contributes to household food quality and resilience; and

(5) This chapter supports agricultural literacy and responsible household food production by establishing a minimum statewide standard to prevent total prohibitions on household egg production, while preserving reasonable local government and homeowner's association authority related to health, safety, and nuisance concerns.

25-4103. DEFINITIONS. As used in this chapter:

(1) "Hen" means a female chicken.

(2) "Homeowner's association" has the same meaning as provided in section 55-3203, Idaho Code.

(3) "Political subdivision" means a city, county, or other unit of local government within the state of Idaho.

(4) "Single-family residence" means a detached residential dwelling designed for occupancy by one (1) household and does not include apartments, condominiums, duplexes, townhomes, or other multifamily dwellings.

1       25-4104. HOUSEHOLD EGG PRODUCTION -- MINIMUM STATEWIDE STANDARD. (1)  
2       Notwithstanding any ordinance, resolution, rule, covenant, condition, or  
3       restriction to the contrary, an owner or occupant of a single-family resi-  
4       dence may keep up to four (4) hens for household egg production.

5       (2) Additional hens may be kept as allowed by a political subdivision or  
6       homeowner's association.

7       (3) Roosters are prohibited unless expressly permitted by a political  
8       subdivision or homeowner's association.

9       (4) Eggs produced pursuant to this section may be sold, bartered, or ex-  
10      changed, provided such sales comply with applicable Idaho food safety and  
11      cottage food laws governing small-scale, home-based food production.

12      25-4105. AUTHORITY PRESERVED. Nothing in this chapter shall be con-  
13      strued to prohibit a political subdivision or homeowner's association from  
14      adopting or enforcing reasonable regulations related to sanitation, enclo-  
15      sure, location, noise, odor, pest control, or nuisance prevention, or from  
16      limiting or prohibiting household egg production at multifamily dwellings,  
17      provided such regulations do not prohibit the household egg production au-  
18      thorized by this chapter.

19      25-4106. PROSPECTIVE APPLICATION. This chapter applies prospectively  
20      only and does not affect any enforcement action, fine, penalty, or legal pro-  
21      ceeding that was final prior to July 1, 2026.

22      SECTION 2. An emergency existing therefor, which emergency is hereby  
23      declared to exist, this act shall be in full force and effect on and after  
24      July 1, 2026.